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Law 353B.001

Aboriginal and Treaty Rights

Professor M. Jackson

Notes on Project

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They say that those who do not learn from the past are destined to repeat it. The echoes of the past resonate deeply when learning about Aboriginal and Treaty Rights. It was a great privilege to listen to Professor Jackson and how he constructed the lesson of colonialism and the law of treaties. In my project I have attempted to weave in the words of Bartolome de las Casas and the early contact of the Spanish and the Native people of North and Central America. I found the justification of the *Requimento* very striking. The *Requimento* encapsulates what I imagine British settlers must have thought to use Christianity to validate displacing the First Nations in what would become Canada.

I wrote down quotes in class of Bartolome's protests. It is amazing that 500 years ago the same arguments occurred: whether Aboriginals have souls, whether Natives are "men". Indians have only been allowed to vote Federally in Canada for 50 years. As a status person, I am a ward of the state. The Federal government has a power over me that non-Natives in Canada are free from. Viewing the comments on CBC's news website there are so many people who post things that illustrate discrimination against Native people. Often, an equal amount of people viewing discriminatory comments approved of them compared to the number that disapproved of those comments. Non-Native Canadians resent that we are wards of the state. They say they don't want their tax dollars spent to "baby-sit" Native people. There is no equality here. Whether or not we are "men" or have souls is a live issue.

The Discovery Doctrine and the holding of *Johnson v. M'Intosh* is also a viewpoint that is alive and well. It is another tool that has been used to displace Aboriginal people. I felt

it was akin to a rubber-stamping of the plan to forget about the Covenant Chain and the early treaties, and is emblematic of the viewpoint of non-Native Canadians. Many non-native Canadians don't even see us; they walk right by an Aboriginal person sleeping rough in a doorway. They have low expectations of Aboriginals and have forgotten that this was our land, and they displaced us.

The history of injustice that permeates my family's past, the Hwlitsum First Nation, runs through many Aboriginal communities. The most difficult thing is that there are not many of us able to stand up against it. In my own family the demons of alcohol and violence run rampant, and judging from the statistics of over-incarceration of Aboriginals my family is not alone in this struggle.

In order for a community to even begin to be in a place where treaty making and the case law can be a tool for regaining our land and self-governance, Aboriginal people have to break free of the chains of addiction and crime. Then, as a community, we need to break the perceptions of non-Native Canadians and make them see us. We are more than just wards of the state requiring the taxpayer to "baby-sit". We have souls, and we are "men", like everyone else. Then, as Bartolome stated, we should not be deprived of our liberty, either as a ward of the state, or a guest of Corrections Canada, or displaced people. We will have our treaties and our land, and will be self-sufficient. And the justification that Canada uses, the spectre of addictions and crime, should fade away as we reclaim our culture and honour our ancestors.